

STATE OF NEW YORK

10200--A

Cal. No. 1510

IN SENATE

May 5, 2026

Introduced by Sens. KAVANAGH, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- committee discharged and said bill committed to the Committee on Rules -- ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the multiple dwelling law, in relation to energy efficiency improvements and certain alterations to multiple dwellings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 4 of the multiple dwelling law is amended by adding a new subdivision 45 to read as follows:

45. "HVAC equipment" is heating, ventilation and air conditioning equipment.

§ 2. Subdivision 5 of section 30 of the multiple dwelling law is amended to read as follows:

5. No multiple dwelling shall be so altered as to diminish the light or ventilation of any room or public hall or stairs in any way not approved by the department, except that:

a. Where an existing window in any room, public hall or stairs is replaced with a window assembly having a lower coefficient of heat transmittance, such light and ventilation may be reduced by not more than twenty-five percent below the minimum otherwise required by this chapter.

b. Where HVAC equipment is installed in an existing window, such light and ventilation may be reduced by not more than twenty-five percent below the minimum otherwise required by this chapter.

c. Where both an existing window is replaced with a window assembly in accordance with paragraph a of this subdivision and HVAC equipment is installed in such window assembly, such light and ventilation may be reduced by not more than thirty-three percent below the minimum otherwise required by this chapter.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD15756-03-6

§ 3. Paragraph (a) of subdivision 8 of section 30 of the multiple dwelling law, as amended by chapter 559 of the laws of 1995, is amended to read as follows:

(a) The windows in every room, except a water-closet compartment, bathroom, or cooking space less than eighty square feet in floor surface area, shall have a total area at least one-tenth of the floor surface area of such room ~~[and every window in such a room, including a mullioned casement window, shall be at least twelve square feet in area]~~ except that:

(1) Where an existing window in any such room is replaced with a window assembly having a lower coefficient of heat transmittance, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this paragraph.

(2) Where HVAC equipment is installed in an existing window, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this paragraph.

(3) Where both an existing window is replaced with a window assembly in accordance with subparagraph one of this paragraph and HVAC equipment is installed in such window assembly, such window area may be reduced by not more than thirty-three percent below the minimum otherwise required by this paragraph.

§ 4. Subdivision 4 of section 31 of the multiple dwelling law is amended to read as follows:

4. Dining bays with a floor area of fifty-five square feet or less shall not be considered as rooms or alcoves and shall not be required to comply with the provisions of section thirty-two. Every such dining bay shall be equipped with such appropriate permanent fittings as may be required by the department and shall be provided with at least one window opening directly upon a street or upon a lawful yard, court or space above a setback. Such window shall have an area of at least one-eighth of the floor area of such dining bay except that:

a. Where an existing window in any such dining bay is replaced with a window assembly having a lower coefficient of heat transmittance, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this subdivision.

b. Where HVAC equipment is installed in an existing window, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this subdivision.

c. Where both an existing window is replaced with a window assembly in accordance with paragraph a of this subdivision and HVAC equipment is installed in such window assembly, such window area may be reduced by not more than thirty-three percent below the minimum otherwise required by this subdivision.

§ 5. Paragraph c of subdivision 3 of section 33 of the multiple dwelling law, as amended by chapter 366 of the laws of 1957, is amended to read as follows:

c. Every kitchenette constructed after July first, nineteen hundred forty-nine, shall be provided with a window opening upon a street or upon a yard, court, shaft, or upon any space above a setback.

(1) Such window shall be at least one foot wide, have a total area of at least three square feet and be at least ten per centum of the superficial floor area of such kitchenette except that:

A. Where an existing window in any such kitchenette is replaced with an assembly having a lower coefficient of heat transmittance, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this subparagraph.

B. Where HVAC equipment is installed in an existing window, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this subparagraph.

C. Where both an existing window is replaced with a window assembly in accordance with clause A of this subparagraph and HVAC equipment is installed in such window assembly, then such window area may be reduced by not more than thirty-three percent below the minimum otherwise required by this subparagraph.

(2) In lieu of such window, such kitchenette may be provided with mechanical ventilation to provide at least six changes per hour of the air volume of such kitchenette or, when such kitchenette is on the top story, may have a skylight at least one foot wide with a total area of at least four square feet or one-eighth of the area of the kitchenette, whichever is greater, and shall have ventilating openings of at least one-half of the area of the skylight.

§ 6. The opening paragraph and paragraph d of subdivision 1 of section 34 of the multiple dwelling law, the opening paragraph as amended by chapter 874 of the laws of 1956, are amended to read as follows:

In any multiple dwelling erected after April eighteenth, nineteen hundred twenty-nine, every room in a cellar or basement shall have a permit as provided in [~~subdivision five of~~] section three hundred and, except as provided in subdivision six of this section, shall comply with the following conditions:

d. Every such room shall have a window or windows complying with the requirements of section thirty.

(1) The aggregate area of windows in each such room, except as provided in paragraph f, shall be at least one-eighth of the horizontal area of the room except that:

A. Where an existing window in any such room is replaced with a window assembly having a lower coefficient of heat transmittance, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this paragraph.

B. Where HVAC equipment is installed in an existing window, such window area may be reduced by not more than twenty-five percent below the minimum otherwise required by this paragraph.

C. Where both an existing window is replaced with a window assembly in accordance with clause A of this subparagraph and HVAC equipment is installed in such window assembly, such window area may be reduced by not more than thirty-three percent below the minimum otherwise required by this paragraph.

(2) Each such window shall be constructed so that the upper half of its area can be opened, and shall open upon a street, court or yard. The underside of the top stop-bead of each such window shall be within twelve inches of the ceiling. [~~One window in each such room shall have an area of at least twelve square feet.~~]

§ 7. Subdivision 1 of section 36 of the multiple dwelling law is amended to read as follows:

1. In every multiple dwelling erected after April eighteenth, nineteen hundred twenty-nine, one at least of the required windows provided to light each public hall or part thereof shall be at least two feet six inches wide and five feet high except that where existing windows are replaced with window assemblies having a lower coefficient of heat transmittance, such openings may be reduced in area by not more than twenty-five percent. Every required window in such a hall shall open upon a street, court, yard or space above a setback. On the top story of such a

dwelling a ventilating skylight of the same dimensions shall be accepted in lieu of a window for that story.

§ 8. Paragraph h of subdivision 1 of section 76 of the multiple dwelling law, as amended by chapter 642 of the laws of 1964, is amended to read as follows:

h. Every water-closet compartment, bathroom and general or public toilet room, and every other room containing one or more water-closets or urinals, except as specifically provided otherwise in this section, shall have at least one window opening upon a street or lawful court, yard or space above a setback. Every such window shall be at least three square feet in area and shall be made so that half its area can be readily opened, except that where an existing window is replaced with a window assembly having a lower coefficient of heat transmittance, such window area may be reduced to two and one-quarter square feet.

§ 9. Paragraph f of subdivision 2 of section 107 of the multiple dwelling law is amended to read as follows:

f. If a window to the outer air is provided in any such public vestibule or hall, such vestibule or hall shall nevertheless be ventilated as provided in paragraph e, except that if such a window ~~has~~ is readily accessible to the outer air to the extent of at least five and one-half square feet of its area, no vent flues need be provided within a distance of forty feet from each side of such window having a glazed area of at least twelve square feet and at least one tenth of the superficial floor area of the vestibule or hall, ~~[readily accessible to the outer air to the extent of at least five and one-half square feet of its area, no vent flues need be provided within a distance of forty feet from each side of such window]~~ or, where an existing window is replaced with a window assembly having a lower coefficient of heat transmittance, such replaced window may be reduced to the greater of a glazed area of at least ten square feet or at least one-twelfth of the floor area of the vestibule or hall.

§ 10. Subdivision 4 of section 148 of the multiple dwelling law, as amended by chapter 446 of the laws of 1951, is amended to read as follows:

4. Except in the case of an interior enclosed stair separated from and directly accessible to the public hall by a self-closing fireproof door and except as provided in subdivision five, there shall be provided to light and ventilate every stair at every story a window or windows opening on a street, court, yard or space above a setback. At least one such window shall be at least two feet six inches wide and five feet high unless it opens on a street, in which case its minimum height shall be four feet. The aggregate area of such window or windows at each story shall be at least eighteen square feet~~[-On]~~ except that where an existing window is replaced with a window assembly having a lower coefficient of heat transmittance, the aggregate area of such window may be reduced by up to twenty-five percent and on the top story a ventilating skylight may be substituted for a window. At the entrance story or at the roof level a sash door, such as described in section thirty-five, opening to the outer air may be substituted for such window.

§ 11. Paragraph b of subdivision 2 of section 171 of the multiple dwelling law is amended to read as follows:

b. To reduce the room or window area of any converted dwelling or make any other alteration therein if such alteration decreases the light, ventilation, fire protection or sanitation thereof except that:

(1) Where an existing window in any such room is replaced with a window assembly having a lower coefficient of heat transmittance, window

areas and light and ventilation may be reduced by not more than twenty-five percent below the minimum otherwise required by this chapter.

(2) Where HVAC equipment is installed in an existing window, such window area, light, and ventilation may be reduced by not more than twenty-five percent below the minimum otherwise required by this chapter.

(3) Where both an existing window is replaced with a window assembly in accordance with subparagraph one of this paragraph and HVAC equipment is installed in such window assembly, such window area, light, and ventilation may be reduced by not more than thirty-three percent below the minimum otherwise required by this chapter.

§ 12. Subdivisions 1, 2 and 3 of section 173 of the multiple dwelling law, subdivision 2 as amended by chapter 566 of the laws of 1954, are amended to read as follows:

1. Except as provided in [~~subdivision four of~~] section one hundred seventy-seven every living room shall have one or more windows opening directly upon a street or upon a yard or court with dimensions conforming to those specified in section one hundred seventy-two, or upon an inner court or shaft three feet nine inches or more in width and eight feet or more in length.

2. a. Such windows shall be so located as to light properly all portions of the room and in each room shall have an aggregate glazed area of at least one-tenth of the floor area of the room, unless in the opinion of the department such room is already adequately lighted and ventilated. The top of at least one window in each living room shall be seven feet or more above the floor except when such room is in the basement or on the top story, in which case the top of at least one window shall be six feet or more above the floor. Every such window shall be twelve square feet or more in area, and shall be so constructed that one-half or more of its area may be opened. However, such window need not be twelve square feet in area provided that each room shall have an aggregate glazed window area of at least one-eighth of the superficial floor area of the room.

b. Notwithstanding any inconsistent provision of this subdivision:

(1) Where any such existing window in any such room is replaced with a window assembly having a lower coefficient of heat transmittance, the window and glazed areas may be reduced not more than twenty-five percent below the minimum otherwise required by this paragraph.

(2) Where HVAC equipment is installed in an existing window, the window and glazed areas may be reduced by not more than twenty-five percent below the minimum otherwise required by this paragraph.

(3) Where both an existing window is replaced with a window assembly in accordance with paragraph a of this subdivision and HVAC equipment is installed in such window assembly, such window and glazed areas may be reduced by not more than thirty-three percent below the minimum otherwise required by this paragraph.

3. Whenever a basement conforming to the provisions of [~~subdivision four of~~] section one hundred seventy-seven is permitted to be occupied for living purposes, every living room, bathroom, water-closet compartment, kitchen and cooking space therein shall have one or more windows opening directly upon a street; or upon a yard which is at every point at least fifteen feet in depth and, above the window sill level of the first story above the basement, at least twenty feet; or upon a court at least two feet in width and extending the entire depth of the lot from the street to the yard. All such yards and courts shall be measured at the ground level from the lot line to the building line opposite on the

1 same lot. The top edge of the glazed area of every window shall be nine
2 inches or more below the finished ceiling and one foot or more above the
3 level of the adjoining ground. Every such window shall be so constructed
4 that one-half or more of its area may be opened, and shall be so located
5 as to light and ventilate adequately all portions of the room. The
6 windows in each such room shall have an aggregate glazed area of at
7 least one-eighth of the total floor area of the room, and in no event
8 less than twelve square feet[~~-. The top edge of the glazed area of every~~
9 ~~window shall be nine inches or more below the finished ceiling and one~~
10 ~~foot or more above the level of the adjoining ground. Every such window~~
11 ~~shall be so constructed that one half or more of its area may be opened,~~
12 ~~and shall be so located as to light and ventilate adequately all~~
13 ~~portions of the room]~~ except that:

14 a. Where an existing window in any such room is replaced with a window
15 assembly having a lower coefficient of heat transmittance, the window
16 and glazed areas may be reduced not more than twenty-five percent below
17 the minimum otherwise required by this subdivision.

18 b. Where HVAC equipment is installed in an existing window, such
19 window and glazed areas may be reduced by not more than twenty-five
20 percent below the minimum otherwise required by this subdivision.

21 c. Where both an existing window is replaced with a window assembly in
22 accordance with paragraph a of this subdivision and HVAC equipment is
23 installed in such window assembly, such window and glazed areas may be
24 reduced by not more than thirty-three percent below the minimum other-
25 wise required by this subdivision.

26 § 13. Subdivision 2 of section 214 of the multiple dwelling law is
27 amended to read as follows:

28 2. In any tenement, apartments containing three or more rooms may have
29 dining bays, which shall not exceed fifty-five square feet in floor
30 surface area and shall not be deemed separate rooms or subject to the
31 requirements for separate rooms or alcoves. ~~[Every]~~ No dining bay shall
32 be permitted in any apartment containing less than three rooms. Where
33 permitted, such dining bay shall be equipped with such appropriate
34 permanent fittings as may be required by the department and shall also
35 be provided with at least one window opening directly upon a street or
36 upon a yard or court which was lawful on April eighteenth, nineteen
37 hundred twenty-nine. The area of such window shall be one-eighth at
38 least of the floor surface area of such dining bay[~~-. No dining bay shall~~
39 ~~be permitted in any apartment containing less than three rooms.~~], except
40 that:

41 a. Where an existing window in any such dining bay is replaced with a
42 window assembly having a lower coefficient of heat transmittance, such
43 window may be reduced by not more than twenty-five percent below the
44 minimum otherwise required by this subdivision.

45 b. Where HVAC equipment is installed in an existing window, the area
46 of such window may be reduced by not more than twenty-five percent below
47 the minimum otherwise required by this subdivision.

48 c. Where both an existing window is replaced with a window assembly in
49 accordance with paragraph a of this subdivision and HVAC equipment is
50 installed in such window assembly, the area of such window may be
51 reduced by not more than thirty-three percent below the minimum other-
52 wise required by this subdivision.

53 § 14. The opening paragraph and paragraph f of subdivision 2 of
54 section 216 of the multiple dwelling law, the opening paragraph as
55 amended by chapter 874 of the laws of 1956, are amended to read as
56 follows:

1 No room in the basement or cellar of any tenement shall be occupied
2 for living purposes unless there is a written permit therefor as
3 provided in ~~[subdivision five of]~~ section three hundred and it either is
4 part of an apartment which complies with the conditions of subdivision
5 six of section thirty-four or complies with the following conditions:

6 f. ~~[The area of every]~~ Every window in such a room shall be ~~[at]~~ made
7 to open, and the top of each window shall be within twelve inches of the
8 ceiling. At least twelve square feet, and the total area of windows in
9 every such room shall be at least one-eighth of the total floor area of
10 the room~~[. At least half of each window shall be made to open, and the~~
11 ~~top of each window shall be within twelve inches of the ceiling]~~, except
12 that:

13 (1) Where an existing window in any such room is replaced with a
14 window assembly having a lower coefficient of heat transmittance, such
15 window may be reduced by not more than twenty-five percent below the
16 minimum otherwise required by this paragraph.

17 (2) Where HVAC equipment is installed in an existing window, such
18 window area may be reduced by not more than twenty-five percent below
19 the minimum otherwise required by this paragraph.

20 (3) Where both an existing window is replaced with a window assembly
21 in accordance with subparagraph one of this paragraph and HVAC equipment
22 is installed in such window assembly, such window area may be reduced by
23 not more than thirty-three percent below the minimum otherwise required
24 by this paragraph.

25 § 15. Paragraph d of subdivision 3 of section 216 of the multiple
26 dwelling law is amended to read as follows:

27 d. Such room shall have a window or windows opening directly to the
28 required unoccupied area of ground outside of and adjoining such room or
29 to a street or yard. Every such window shall be made so as to open read-
30 ily and such window or windows shall provide at least twelve square feet
31 of clear openings for ventilation, except that where an existing window
32 is replaced with a window assembly having a lower coefficient of heat
33 transmittance, such window opening may provide not less than nine square
34 feet of clear openings for ventilation.

35 § 16. Paragraph b of subdivision 4 of section 216 of the multiple
36 dwelling law is amended to read as follows:

37 b. Such room shall be everywhere seven feet six inches or more in
38 height from floor to ceiling and shall have a window or windows opening
39 directly to a street, or to a yard at least twelve feet in depth, or to
40 a court at least six feet in its least dimension and twelve feet in its
41 greatest dimensions; every such windows shall be made so as to open
42 readily; such window or windows shall provide at least twelve square
43 feet of clear opening for ventilation, ~~[and the]~~ except that where an
44 existing window is replaced with a window assembly having a lower coef-
45 ficient of heat transmittance, such window may provide not less than
46 nine square feet of clear opening for ventilation. The apartment
47 containing such room shall have one or more rooms opening upon a street
48 or yard.

49 § 17. Subdivision 5 of section 217 of the multiple dwelling law is
50 amended to read as follows:

51 5. In every public hall that is provided with a window or windows in a
52 tenement erected after April twelfth, nineteen hundred one, at least one
53 such window shall be at least two feet six inches wide and five feet
54 high, except that:

55 a. Where an existing window is replaced with a window assembly having
56 a lower coefficient of heat transmittance, such window may be reduced in

1 area by not more than twenty-five percent below the minimum otherwise
2 required by this subdivision.

3 b. Where HVAC equipment is installed in an existing window, the glazed
4 area may be reduced by not more than twenty-five percent below the mini-
5 imum otherwise required by this subdivision.

6 c. Where both an existing window is replaced with a window assembly in
7 accordance with paragraph a of this subdivision and HVAC equipment is
8 installed in such window assembly, such glazed area may be reduced by
9 not more than thirty-three percent below the minimum otherwise required
10 by this subdivision.

11 § 18. Paragraph a of subdivision 11 of section 248 of the multiple
12 dwelling law is amended to read as follows:

13 a. No room may be occupied for sleeping purposes unless it has a
14 window or windows with an aggregate glazed area of at least ten per
15 centum of the total floor area of such room. Each such window shall be
16 at least twelve feet in area and so constructed that at least half of
17 its area may be opened, except that:

18 (1) Where an existing window in any such room is replaced with a
19 window assembly having a lower coefficient of heat transmittance, such
20 window and glazed areas may be reduced by not more than twenty-five
21 percent below the minimum otherwise required by this paragraph.

22 (2) Where HVAC equipment is installed in an existing window, such
23 window and glazed areas may be reduced by not more than twenty-five
24 percent below the minimum otherwise required by this paragraph.

25 (3) Where both an existing window is replaced with a window assembly
26 in accordance with subparagraph one of this paragraph and HVAC equipment
27 is installed in such window assembly, such window and glazed areas may
28 be reduced by not more than thirty-three percent below the minimum
29 otherwise required by this paragraph.

30 § 19. Subdivision 7 of section 277 of the multiple dwelling law, as
31 added by chapter 734 of the laws of 1985, paragraph (e) as amended by
32 chapter 559 of the laws of 1995, is amended to read as follows:

33 7. Minimum light and air standards for joint living-work quarters for
34 artists or general residential portions of lofts or manufacturing and
35 commercial buildings altered to residential use shall comply with the
36 following:

37 (a) Portions of such buildings which are occupied exclusively as joint
38 living-work quarters for artists as permitted by local law shall comply
39 with the following:

40 (i) The minimum size of a joint living-work quarters for artists shall
41 be twelve hundred square feet of interior space, except as otherwise
42 authorized by the zoning resolution of the city of New York, for units
43 occupied for residential purposes on or before January first, nineteen
44 hundred eighty-five.

45 (ii) Joint living-work quarters for artists shall conform to the stan-
46 dards for light and ventilation of former sections C26-1205.0 through
47 and including section C26-1205.7 of the administrative code of the city
48 of New York.

49 (b) Portions of such buildings which are occupied exclusively as resi-
50 dential units as permitted by local law shall comply with the following:

51 (i) Every dwelling unit shall have one or more windows:

52 A. which open onto a street, a court with a dimension of fifteen feet
53 perpendicular to the windows and one hundred square feet minimum area
54 above a setback or a thirty foot rear yard; or

1 B. for corner lots or lots within one hundred feet of a corner, where
2 the minimum horizontal distance between such windows opening onto a rear
3 yard and the rear lot line is at least twenty feet; or

4 C. for interior lots, where the minimum horizontal distance between
5 such windows opening onto a rear yard and any wall opposite such windows
6 on the same or another zoning lot is at least twenty feet and not less
7 than a distance equal to one-third of the total height of such wall
8 above the sill height of such windows; but need not exceed forty feet;
9 or

10 D. for interior lots where the minimum horizontal distance between
11 such windows opening onto a rear yard and any wall opposite such windows
12 on the same or another zoning lot is at least fifteen feet and the mini-
13 mum size of such dwelling unit is twelve hundred square feet; or

14 E. in no event shall the distance between such windows and the rear
15 lot line be less than five feet; and

16 F. yards and courts may be existing or may be new in buildings seven
17 stories or less in height.

18 (ii) The minimum required ratio of window area opening onto a street,
19 rear yard, or court to the floor area of every living room shall:

20 A. be ten percent where the floor area of such living room is less
21 than five hundred square feet, except that:

22 (1) where an existing window in any such room is replaced with a
23 window assembly having a lower coefficient of heat transmittance, such
24 window areas may be reduced not more than twenty-five percent below the
25 minimum otherwise required by this paragraph;

26 (2) where HVAC equipment is installed in an existing window, such
27 window area may be reduced by not more than twenty-five percent below
28 the minimum otherwise required by this paragraph; or

29 (3) where both an existing window is replaced with a window assembly
30 in accordance with item one of this clause, and HVAC equipment is
31 installed in such window, such window area may be reduced by not more
32 than thirty-three percent below the minimum otherwise required by this
33 paragraph; or

34 B. decrease, by one percent for every one hundred square feet greater
35 than five hundred square feet of floor area of such living room, to a
36 minimum of five percent; and

37 C. in no event shall the distance between such window area and the
38 rear lot line be less than five feet; and

39 D. at least fifty percent of the required window area shall be opena-
40 ble.

41 (c) Ventilation of spaces other than living rooms, including enclosed
42 work spaces for joint living-work quarters for artists shall be either
43 in accordance with this section or in accordance with the administrative
44 code of the city of New York.

45 (d) No building converted pursuant to this article shall be enlarged,
46 except where the underlying zoning district permits residential use.
47 Such an enlargement shall be in conformance with the bulk regulations
48 for conforming residential use for new construction and shall be in
49 conformance with the provisions of section twenty-six of this chapter.
50 No interior floor area enlargement shall be permitted except that a
51 mezzanine with a minimum headroom of seven feet shall be allowed within
52 individual dwelling units, provided that the gross floor area of such
53 mezzanine does not exceed one-third of the floor area contained within
54 such dwelling unit. No mezzanine shall be included as floor area for the
55 purpose of calculating the minimum required size of a living room or a
56 dwelling unit or for calculating floor area devoted to dwellings. For

1 the purpose of this article a mezzanine may be constructed above the
2 level of the roof of a building as long as the aggregate area of roof
3 structures does not exceed one-third of the total roof area and the roof
4 structures conform with applicable building code requirements.

5 (e) The kitchen located within dwelling units and having a floor area
6 of eighty square feet or more shall have natural ventilation as
7 prescribed in sections 27-749 and 27-750 of chapter twenty-seven of the
8 administrative code of the city of New York. Open kitchens shall be
9 considered as part of the adjacent space where forty percent of the area
10 of the separation between the spaces is open and without doors. If the
11 floor area of the combined space exceeds seven hundred fifty square
12 feet, a separate bedroom shall not be required. When the floor area is
13 less than eighty square feet the kitchenette shall be ventilated by
14 either of the following:

15 (i) Natural means complying with sections 27-749 and 27-750 of chapter
16 twenty-seven of the administrative code of the city of New York and
17 further that the windows shall have a minimum width of twelve inches, a
18 minimum area of three square feet, or ten percent of the floor area of
19 the space, whichever is greater and be so constructed that at least
20 one-half of their required area may be opened, except that where exist-
21 ing windows are replaced with window assemblies having a lower coeffi-
22 cient of heat transmittance, such windows may be reduced to not less
23 than a minimum width of ten inches, a minimum area of two and one-quar-
24 ter square feet, or one-twelfth of the floor area of the space, whichev-
25 er is greater. When the space is located at the top story, the window
26 or windows may be replaced with a skylight whose minimum width shall be
27 twelve inches, whose minimum area shall be four square feet or one-
28 eighth of the floor area of the space, whichever is greater and which
29 shall have ventilation openings of at least one-half of the required
30 area of the skylight.

31 (ii) Mechanical means exhausting at least two cubic feet per minute of
32 air per square foot of floor area. Where doors are to be used to sepa-
33 rate the space, the lower portion of each door shall have a metal grill
34 containing at least forty-eight square inches of clean openings or in
35 lieu of such grill, two clear opening spaces may be provided, each of at
36 least twenty-four square inches, one between the bottom of each door and
37 the floor and the other between the top of each door and the head jamb.

38 (f) When bathrooms and toilet rooms are ventilated by natural means,
39 the natural ventilation sources shall comply with **former** sub-article
40 1205.0 of chapter twenty-six of the administrative code of the city of
41 New York and shall have an unobstructed free area of at least five
42 percent of the floor area. In no case shall the net free area of the
43 ventilation sources be less than one and one-half square feet. When
44 bathrooms and toilet rooms are vented by mechanical means, individual
45 vent shafts or ducts constructed of non-combustible materials with a
46 minimum cross section area of one square foot shall be utilized, the
47 exhaust system shall be capable of exhausting at least fifty cubic feet
48 per minute of air. Means shall be provided for egress of air by louvers
49 in doors, by undercutting the door, or by transfer ducts, grills or
50 other openings. Toilet exhaust systems shall be arranged to expel air
51 directly to the outdoors.

52 (g) A single station smoke detector shall be installed immediately
53 outside each sleeping or bedroom area of each dwelling unit. Such device
54 shall be designed and installed so as to detect smoke and activate an
55 alarm, be reasonably free from false alarms and provide visible indi-
56 cation that the alarm is energized. Such device shall be directly

1 connected to the lighting circuit of the dwelling or rooming unit with
2 no intervening wall switch and shall provide a warning signal clearly
3 audible in all sleeping quarters with intervening doors closed. Cord
4 connected installations or smoke detectors which rely exclusively on
5 batteries are not permissible. Such devices shall either be approved or
6 listed by an acceptable testing service or laboratory.
7 § 20. This act shall take effect immediately and shall apply to all
8 buildings in existence on or constructed after such date.